

25TRCV00773 25TRCV00773

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Case Number: 25TRCV00773 Hearing Date: July 8, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Wednesday – July 8, 2026

Calendar No.

PROCEEDINGS

Derrick

Mitchell v. Hilton Hotels Corporation, et al.

25TRCV00773

1. UHG LAX Prop LLC's Demurrer to Complaint

2.

UHG LAX Prop

LLC's Motion to Strike Portions of Complaint

TENTATIVE RULING

UHG LAX Prop LLC's Demurrer to Complaint is sustained with 20 days leave to amend.

UHG LAX Prop LLC's Motion to Strike Portions of Complaint
is granted with 20 days leave to amend.

Background

Plaintiff's Complaint was filed on March 10, 2025. Plaintiff alleges the following facts. Plaintiff suffered bed bug bites after staying at Defendants' hotel. Plaintiff alleges the following causes of action: 1. Battery; 2. Negligence; 3. Premises Liability; 4. Intentional Infliction of Emotional Distress; 5. Fraudulent Concealment; 6. Private Nuisance; 7. Public Nuisance; 8. Breach of Contract.

Meet and Confer

Defendant set forth a meet and confer declaration in sufficient compliance with CCP § 430.41 and CCP § 435.5. (Decls., Lisa Herme).

Demurrer

A demurrer tests the sufficiency of a complaint as a matter of law and raises only questions of law. (Schmidt v. Foundation Health (1995) 35 Cal.App.4th 1702, 1706.) In testing the sufficiency of the complaint, the court must assume the truth of (1) the properly pleaded factual allegations; (2) facts that can be reasonably inferred from those expressly pleaded; and (3) judicially noticed matters. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) The Court may not consider contentions, deductions, or conclusions of fact or law. (Moore v. Conliffe (1994) 7 Cal.App.4th 634, 638.) Because a demurrer tests the legal sufficiency of a complaint, the plaintiff must show that the complaint alleges facts sufficient to establish every element of each cause of action. (Rakestraw v. California Physicians Service (2000) 81 Cal.App.4th 39, 43.) Where the complaint fails to state facts sufficient to constitute a cause of action, courts should sustain the demurrer. (C.C.P., § 430.10(e); Zelig v. County of Los Angeles (2002) 27 Cal.App.4th 1112, 1126.)

Sufficient facts are the essential facts of the case "with reasonable precision and with particularity sufficiently specific to acquaint the defendant with the nature, source, and extent of his cause of action." (Gressley v. Williams (1961) 193 Cal.App.2d 636, 643-644.) "Whether the plaintiff will be able to

prove the pleaded facts is irrelevant to ruling upon the demurrer." (Stevens v. Superior Court (1986) 180 Cal.App.3d 605, 609–610.) Under Code Civil Procedure § 430.10(f), a demurrer may also be sustained if a complaint is "uncertain." Uncertainty exists where a complaint's factual allegations are so confusing they do not sufficiently apprise a defendant of the issues it is being asked to meet. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.)

Defendant demurs to the first and fourth through eighth causes of action for failure to state sufficient facts to state a cause of action. CCP § 430.10(e). Defendant also demurs to the eighth cause of action on the grounds that the cause of action is uncertain. CCP § 430.10(f).

First Cause of
Action for Battery

Defendant's demurrer to the first cause of action is sustained with 20 days leave to amend. Plaintiff fails to state sufficient facts to state a cause of action.

"The elements of a cause of action for battery are: (1) the defendant touched the plaintiff, or caused the plaintiff to be touched, with the intent to harm or offend the plaintiff; (2) the plaintiff did not consent to the touching; (3) the plaintiff was harmed or offended by the defendant's conduct; and (4) a reasonable person in the plaintiff's position would have been offended by the touching." Carlsen v. Koivumaki (2014) 227 Cal.App.4th 879, 890.

Plaintiff fails to plead facts to support the element of intent to harm or offend. Plaintiff merely stated conclusions. Plaintiff relies upon conclusory statements such as allegations that Defendant acted intentionally, willfully, and recklessly without facts to support these conclusions. Plaintiff concludes with no supporting facts that Defendant allegedly acted deliberately and recklessly and that Defendant knew that the room was infected by bedbugs prior to Plaintiff's stay. Plaintiff alleges no facts to demonstrate that Defendant was aware of any bed bug infestation in Plaintiff's room immediately prior to Plaintiff's stay at the hotel, and that despite this awareness, Defendant knowingly allowed Plaintiff to stay in the bed bug infested room with the intent to harm or

offend the Plaintiff.

Plaintiff relies upon

prior complaints of bed bugs made against Defendant on “Yelp” and other online platforms. (Complaint, ¶ 30). However, these postings made by third parties do not show that Plaintiff’s actual room was infested prior to Plaintiff being allowed to stay in the room, and that Defendants had knowledge of this fact. Instead, Plaintiff has alleged a series of conclusions that Defendant had knowledge of the existence of a bed bug infestation in the room without any facts to support the conclusions. Thus, the factual element of intent to harm or offend Plaintiff is conclusory and lacking in facts.

Plaintiff’s reliance

on *Mathias v. Accor Econ. Lodging, Inc.*, 347 F.3d 672 (7th Cir. Ill. 2003) is unavailing as it is not binding authority in California, was adjudicated with a jury trial rather than via a demurrer and is factually distinguishable as the facts in *Mathias* involved the Defendant’s conscious decision to disguise a bed bug problem by referring to it as ticks.

Therefore, Defendant’s

demurrer to the first cause of action is sustained with 20 days leave to amend.

Fourth Cause of

Action for IIED

Defendant’s demurrer

to the fourth cause of action is sustained with 20 days leave to amend.

Plaintiff fails to state facts sufficient to state a cause of action.

“The elements of a

prima facie case for the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct.” *Miller v. Fortune Commercial Corp.* (2017) 15 Cal.App.5th 214, 228–29.

Plaintiff fails to

plead facts demonstrating extreme and outrageous conduct on the part of

Defendant with the intent of causing or with reckless disregard of causing emotional distress as well as causation of emotional distress by any outrageous conduct. Plaintiff sets forth a series of conclusions alleging that Defendants knowingly allowed Plaintiff to stay in a room infested with bedbugs. However, Plaintiff alleges no facts to demonstrate that Defendant was aware of any bedbug infestation within Plaintiff's actual room immediately prior to Plaintiff's stay at the hotel, and that despite this awareness, Defendant knowingly allowed Plaintiff to stay in the bedbug infested room with the intent to harm or offend the Plaintiff.

Plaintiff alleges the existence of reviews and web postings contending that individuals had suffered bedbug bites at the hotel. (Complaint, ¶¶ 30). However, these postings made by third parties do not show that Plaintiff's actual room was infested prior to Plaintiff being allowed to stay in the room, and that Defendant had knowledge of this fact. These allegations are entirely conclusory based on an unspecified time frame and unsubstantiated postings by unknown individuals.

The factual allegations do not provide facts to show that Defendant was aware of a bed bug infestation within that room but allowed Plaintiff to stay in the room knowing he would get attacked. Instead, Plaintiff has alleged a series of conclusions that Defendant had knowledge of the existence of a bed bug infestation in the room and deliberately chose not to eradicate the infestation without any facts to support the conclusions.

Thus, the demurrer to the fourth cause of action is sustained with 20 days leave to amend.

Fifth Cause of Action for Fraudulent Concealment

Defendant's demurrer to the fifth cause of action is sustained with 20 days leave to amend. Plaintiff fails to state facts sufficient to state a cause of action.

"A complaint for fraud must allege the following elements: (1) a knowingly false representation by the defendant; (2) an intent to deceive or induce reliance; (3) justifiable reliance by the plaintiff; and (4) resulting damages." *Service by Medallion, Inc. v. Clorox Co.*

(1996) 44 Cal.App.4th 1807, 1816. "[T]he elements of an action for fraud and deceit based on a concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he has known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage." Boschma v. Home Loan Center, Inc. (2011) 198 Cal.App.4th 230, 248.

"Every element of the cause of action for fraud must be alleged in the proper manner and the facts constituting the fraud must be alleged with sufficient specificity to allow defendant to understand fully the nature of the charge made." Tarmann v. State Farm Mut. Auto. Ins. Co. (1991) 2 Cal.App.4th 153, 157. Plaintiff must state facts which "show how, when, where, to whom, and by what means the representations were tendered." Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.

Plaintiff fails to plead specific facts to state the cause of action for Fraudulent Concealment, including specific facts as to the alleged intentional concealment of a material fact with the intention to deceive Plaintiff. As noted above, Plaintiff only pleaded conclusions that Defendant had knowledge of a bedbug infestation in Plaintiff's room and intentionally concealed this information from Plaintiff.

Thus, Defendant's demurrer to the fifth cause of action is sustained with 20 days leave to amend.

Sixth Cause of
Action for Private Nuisance

Seventh Cause
of Action for Public Nuisance

Defendant's demurrer to the sixth and seventh causes of action is sustained with 20 days leave to amend. Plaintiff fails to state sufficient facts to state the causes of action.

“Civil

Code section 3479 defines a nuisance as ‘[a]nything which is injurious to health, or is indecent or offensive to the senses, or an obstruction to the free use of property, so as to interfere with the comfortable enjoyment of life or property.’” *Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 919.

“The

elements of an action for private nuisance are: First, the plaintiff must prove an interference with his use and enjoyment of his property. Second, the invasion of the plaintiff's interest in the use and enjoyment of the land [must be] substantial, i.e., that it cause[s] the plaintiff to suffer ‘substantial actual damage. Third, [t]he interference with the protected interest must not only be substantial, but it must also be unreasonable, i.e., it must be of such a nature, duration or amount as to constitute unreasonable interference with the use and enjoyment of the land.” *Mendez v. Rancho Valencia Resort Partners, LLC* (2016) 3 Cal.App.5th 248, 262-63 (internal citations and quotations omitted).

“[I]n determining whether a particular activity constitutes a public nuisance, a court considers three elements: (1) the proscribed act, (2) whether the result of the act interferes with the comfortable enjoyment of life or property, and (3) whether the act affects a sufficient number of persons.” *People v. McDonald* (2006) 137 Cal.App.4th 521, 535.

“A

private nuisance cause of action requires the plaintiff to prove an injury specifically referable to the use and enjoyment of his or her land. Pursuant to Civil Code section 3501, a plaintiff seeking to remedy a private nuisance is limited to a civil action or abatement. Unlike public nuisance, which is an interference with the rights of the community at large, private nuisance is a civil wrong based on disturbance of rights in land.... [T]o proceed on a private nuisance theory the plaintiff must prove an injury specifically referable to the use and enjoyment of his or her land. The injury, however, need not be different in kind from that suffered by the general public.” *Mendez v. Rancho Valencia Resort Partners, LLC* (2016) 3 Cal.App.5th 248, 262 (internal citations and quotations omitted).

Plaintiff

failed to provide any authority to support the contention that a guest at a hotel has the type of property interest in the subject property necessary to state and maintain a cause of action for nuisance. As noted above, Mendez refers to an interference in the use and enjoyment of "his or her" land. In addition, Plaintiff fails to plead facts necessary to state a cause of action for public nuisance. Plaintiff has not pled facts to show that the alleged offensive act affected a sufficient number of persons to qualify as a public nuisance. Plaintiff has merely alleged speculations and conclusions that the infestation may have affected other individuals.

In

addition, the causes of action are duplicative of the Negligence cause of action. "Where negligence and nuisance causes of action rely on the same facts about lack of due care, the nuisance claim is a negligence claim." *El Escorial Owners' Assn. v. DLC Plastering, Inc.* (2007) 154 Cal.App.4th 1337, 1349. Here, the Nuisance and Negligence causes of action are duplicative as the causes of action rely on the same facts as to the lack of due care.

Thus,

the demurrer to the sixth and seventh causes of action is sustained with 20 days leave to amend.

Eighth Cause of Action for Breach of Contract

Defendant's demurrer to the eighth cause of action is sustained with 20 days leave to amend. Plaintiff fails to state sufficient facts to state a cause of action.

"The elements of a cause of action for breach of contract are: (1) the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to plaintiff." *Coles v. Glaser* (2016) 2 Cal.App.5th 384, 391 (internal quotations omitted). "[T]he complaint must indicate on its face whether the contract is written, oral, or implied by conduct. [...] If the action is based on an alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written instrument must be attached and incorporated by reference." *Otworth v. Southern Pac. Transportation Co.* (1985) 166 Cal.App.3d 452,

458–59.

Here, Plaintiff has indicated the existence of a written contract but has failed to attach the contract nor set forth the terms verbatim. In addition, Plaintiff has not alleged the material terms of the contract.

Therefore, the demurrer to the eighth cause of action is sustained with 20 days leave to amend.

Motion
to Strike

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. CCP § 436(a).

The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. CCP § 436(b). The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. CCP § 436. The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. CCP § 437.

Defendant moves to strike the allegations and prayer for punitive damages and attorneys' fees

The motion is granted with 20 days leave to amend.

Civ. Code, § 3294 states, in relevant part:

“(a) In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.

(b) An employer shall not be liable for

damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.”

Plaintiff set forth conclusory allegations that Defendant acted willfully, maliciously, intentionally, and/or recklessly to try to support Plaintiff’s allegations and prayer for punitive damages. A Complaint’s “conclusory characterization of defendant’s conduct as intentional, wilful and fraudulent is a patently insufficient statement of oppression, fraud, or malice, express or implied, within the meaning of section 3294.” *Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.

As to the prayer for attorneys’ fees, no contractual or statutory basis for the request for attorneys’ fees was set forth in the Complaint.

Therefore, the motion to strike is granted with 20 days leave to amend.

Defendant is ordered to give notice of this ruling.